fense counsel must at least have an opportunity to argue that the asserted race-neutral reasons were not the actual reasons—that is, the reasons were pretextual. Then, the trial court can determine whether those asserted reasons were the actual reasons or instead were pretextual. In this case, whether due to confusion, oversight, an overly hurried jury selection process, or some other cause, things broke down, and the ordinary trial-court procedure for resolving *Batson* claims at step three never occurred—notwithstanding the repeated efforts of Pitchford's counsel to pursue and preserve the *Batson* objection.

To be sure, the AEDPA standard for reviewing claims on federal habeas is deferential to the state court. See *Williams* v. *Taylor*, 529 U. S. 362, 412–413 (2000); *Harrington* v. *Richter*, 562 U. S. 86, 102–103 (2011); *Brown* v. *Davenport*, 596 U. S. 118, 135 (2022); *Klein* v. *Martin*, 607 U. S. 213, 220–221 (2026) (*per curiam*). But deference does not mean abdication, and "deference does not by definition preclude relief." *Miller-El* v. *Dretke*, 545 U. S. 231, 240 (2005) (quotation marks and alteration omitted). In light of the entire record in this case, we agree with the U. S. District Court that the Mississippi Supreme Court unreasonably applied the clearly established *Batson* precedents and unreasonably determined that Pitchford waived his opportunity to rebut the prosecutor's asserted race-neutral reasons for the peremptory strikes of four black prospective jurors. 28 U. S. C. §§2254(d)(1), (2).

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We reverse the judgment of the U. S. Court of Appeals for the Fifth Circuit and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE GORSUCH, with whom JUSTICE THOMAS, JUSTICE ALITO, and JUSTICE BARRETT join, dissenting.

Under the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), federal courts may grant habeas corpus relief to state prisoners only in narrowly defined circum-

stances. Appreciating as much, this Court has repeatedly overturned lower-court decisions that have failed to respect AEDPA's constraints. See, *e. g.*, *Klein* v. *Martin*, 607 U. S. 213 (2026) (*per curiam*); *Dunn* v. *Reeves*, 594 U. S. 731 (2021) (*per curiam*); *Mays* v. *Hines*, 592 U. S. 385 (2021) (*per curiam*). Today, the Court looks past those constraints, and its own admonitions, to issue a judgment that AEDPA precludes. Respectfully, I dissent.

I

In 2004, Terry Pitchford and an accomplice robbed a store in Mississippi. At the end of it, the store's owner, Reuben Britt, lay dead. *Pitchford* v. *State*, 45 So. 3d 216, 222–223 (Miss. 2010) (en banc). A state-court trial followed in which a jury found Mr. Pitchford guilty of murder and sentenced him to death, concluding that he "actually killed R[e]uben Britt, . . . intended the killing of R[e]uben Britt[,] . . . and . . . contemplated that lethal force would be employed." Trial Tr. 812.[1]

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This case concerns what happened during jury selection. Midway through that process, Mr. Pitchford's trial team objected that prosecutors were using their peremptory strikes to exclude black prospective jurors in violation of *Batson* v. *Kentucky*, 476 U. S. 79 (1986). 1 App. 167–168.

To resolve objections like that, *Batson* provides a three-step framework. First, a defendant must make a "prima facie showing" that prosecutors have struck prospective jurors "on the basis of race." *Snyder* v. *Louisiana*, 552 U. S.

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[1] To be sure, Mr. Pitchford has advanced various accounts of what happened the day of the robbery. Initially, he denied he was present at all. See 1 App. 195. Later, he said he only fired his gun into the floor and did not shoot Mr. Britt. *Ibid.*; *id.*, at 329, n. 54. But later still, he acknowledged the existence of "admissible proof" showing he did shoot Mr. Britt. *Id.*, at 329; see also *Pitchford*, 45 So. 3d, at 260. And, whatever his view of the facts may be, there is no dispute that a jury found he "inten[tionally]" and "actually killed R[e]uben Britt." Trial Tr. 812.

472, 476 (2008) (internal quotation marks omitted). One common way to meet this burden is statistical—if prosecutors have struck black prospective jurors at a higher rate than white prospective jurors, that may suggest discrimination. *Flowers* v. *Mississippi*, 588 U. S. 284, 302 (2019). Another common way to meet this burden is comparative—if "side-by-side comparisons" show prosecutors have struck black prospective jurors while accepting similar white prospective jurors, that too may suggest discrimination. *Ibid.*

Should a defendant make a prima facie case, the court then moves to step two. There, "the prosecution must offer a race-neutral basis" for each strike. *Snyder*, 552 U. S., at 476–477 (internal quotation marks omitted). If the prosecution does so, the court proceeds to step three: The defendant can try to rebut the prosecution's race-neutral reasons as "pretextual," and ultimately the court must determine whether the prosecution's strikes were in fact based on purposeful discrimination. *Id.*, at 477, 485. As at step one, defendants commonly use statistical and comparative juror arguments at step three.

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In this case, Mr. Pitchford made his prima facie case based on a statistical argument. The prosecution, he noted, had refrained from striking only "one African-American juror out of the five that ha[d] thus far . . . arisen on the venire." 1 App. 167. And, Mr. Pitchford continued, "this is already a disproportiona[tely] white jury [pool] for the population of this county." *Id.*, at 167–168.

The trial judge agreed that Mr. Pitchford had made a prima facie case under *Batson* and thus required the State to offer race-neutral reasons for each of the peremptory strikes it had used on black prospective jurors. The State did so. One prospective juror, it said, had returned late to court after lunch break and had a history of mental problems. 1 App. 86–88, 169. Two had brothers who had been convicted of violent offenses. *Id.*, at 169–170. Another "had no opinion on the death penalty." *Id.*, at 170. Plus,

he was similar to Mr. Pitchford in several ways: They were "approximately the [same] age," they "both ha[d] children about the same age," and they "both ha[d] never been married." *Ibid.*

The judge accepted these reasons as race neutral and directed the parties to resume jury selection. *Ibid.* Mr. Pitchford did not object to that direction or otherwise seek to make a step three showing. Instead, after jury selection concluded, Mr. Pitchford's trial team approached the bench. There, they sought "to reserve . . . [their] *Batson* objection." *Id.*, at 175. The court agreed the *Batson* objection was "in the record," but "f[ound] there to be no *Batson* violation." *Ibid.* At that point, defense counsel reiterated their earlier statistical argument. "[O]ne," "[a]nd only one," of the final jury panel selected for service, Mr. Pitchford's lawyers said, was black even though the "county is approximately . . . 40 percent black." *Id.*, at 176.

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After that exchange, the case proceeded to trial and, in the end, the jury returned a guilty verdict. Seeking to undo that verdict later, Mr. Pitchford filed a motion for a new trial based in part on his statistical *Batson* argument. 1 App. 179, 184, 186. But for the first time, he also briefly introduced a new comparative juror argument, asserting in one sentence that the prosecution had improperly "deselected black people from the jury panel who had the same familial, living, social or marital circumstances as whites who were not deselected." *Id.*, at 184.

After the trial court denied Mr. Pitchford's motion, he appealed to the Mississippi Supreme Court. There, Mr. Pitchford continued to press the statistical argument he had made during jury selection. *Id.*, at 209–210, 223–225. But now he directed most of his efforts to the separate comparative juror argument he introduced for the first time after trial, drawing detailed comparisons in his appellate brief between white jurors who were not struck and the four black jurors who were. *Id.*, at 210–223.

The Mississippi Supreme Court analyzed Mr. Pitchford's *Batson* claim this way. At step one, the court upheld the trial court's ruling that Mr. Pitchford's statistical argument sufficed to make out a prima facie case. *Pitchford*, 45 So. 3d, at 224–226. It also upheld the trial court's step two ruling that the prosecution's reasons were race neutral. *Id.*, at 226–227. And when it came to step three, the Mississippi Supreme Court held that Mr. Pitchford hadn't carried his ultimate burden to show purposeful discrimination. See *id.*, at 227–228.

He hadn't, the court ruled, because he had failed to rebut the State's step two submission in the trial court. Put simply, Mr. Pitchford had "waive[d]" any step three argument. *Id.*, at 227, n. 16 (internal quotation marks omitted). Yes, Mr. Pitchford "devoted a considerable portion" of his appellate brief to a step three comparative juror argument, expanding on the one-sentence version he introduced for the first time in his post-trial motion. *Id.*, at 227. But, the court held, Mr. Pitchford had not adequately presented this argument to the trial court in the first instance. *Ibid.* And, the court added, it could "not now fault the trial judge with failing to discern whether the State's race-neutral reasons were overcome by rebuttal evidence and argument never presented." *Ibid.*

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Following his loss in state court, Mr. Pitchford sought habeas relief in federal court. Among other things, he argued that the Mississippi Supreme Court's waiver holding was unreasonable. The district court agreed and granted relief, explaining that it "view[ed] the record a bit differently" than the Mississippi Supreme Court had. App. to Pet. for Cert. 22. In the district court's view, the state trial court had "failed to provide" Mr. Pitchford with any "opportunity" to make a step three argument "rebut[ting]" the prosecution's proffered race-neutral reasons. *Ibid.* The Fifth Circuit reversed, holding that the Mississippi Supreme Court's waiver finding was both reasonable and, indeed, correct. 126 F. 4th

422, 429, 431 (2025). We granted certiorari. 607 U. S. 1094 (2025).

II

To secure federal habeas relief under AEDPA, Mr. Pitchford must shoulder a considerable burden. Pursuant to 28 U. S. C. § 2254(a), he must prove that he is being held in custody in violation of the Constitution or federal laws. In this case, that means Mr. Pitchford must show his trial was in fact infected by a *Batson* violation. In addition to that showing, he must make one of two further showings. Under § 2254(d)(1), he must demonstrate that the Mississippi Supreme Court's decision "was contrary to, or involved an unreasonable application of, clearly established Federal law." Or, under § 2254(d)(2), he must demonstrate that the court's "decision was based on an unreasonable determination of the facts in light of the evidence presented" in state court. See *Klein*, 607 U. S., at 220.

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This Court has long recognized the rigor of § 2254(d)'s requirements. Showing legal error, we have said, isn't enough to satisfy § 2254(d)(1). Instead, a petitioner must demonstrate that "no fairminded jurist could reach the state court's conclusion under this Court's precedents." *Brown* v. *Davenport*, 596 U. S. 118, 135 (2022) (internal quotation marks and alterations omitted). Likewise, to satisfy § 2254(d)(2), "it is not enough to show that reasonable minds reviewing the record might disagree about the [factual] finding in question." *Ibid.* (internal quotation marks omitted). Instead, the finding must have so little support in the record that only an "unreasonable" jurist could make it. § 2254(d)(2); see also § 2254(e)(1).

As I see things, Mr. Pitchford has failed to satisfy either of these standards. Start with § 2254(d)(1). The Court today seems to think the Mississippi Supreme Court "unreasonably" applied our clearly established precedents by concluding that Mr. Pitchford "waived" any step three argument. *Ante*, at 401. But in *Ford* v. *Georgia*, 498 U. S. 411 (1991), we

said that States enjoy authority to fashion their own preservation rules governing *Batson* claims. 498 U. S., at 423. And taking us at our word, the Mississippi Supreme Court has adopted just such a rule: Any *Batson* argument not adequately presented in a trial court is "waived." See *Pitchford*, 45 So. 3d, at 227, and n. 16 (collecting cases). Nothing about that rule defies our clearly established precedents.[2]

Nor does the Mississippi Supreme Court's application of its rule offend any of our precedents. The court recognized that Mr. Pitchford had preserved a step one statistical argument, but held that he had waived the step three comparative juror argument he sought to press on appeal by failing to raise it during jury selection or trial. See *id.*, at 227–228. The Court today suggests this analysis "slices *Batson* . . . too thin[ly]." *Ante*, at 400. Yet it nowhere pauses to identify any of our clearly established precedents the Mississippi Supreme Court supposedly defied or mistook.

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Turn next to §2254(d)(2). The Court concludes that the Mississippi Supreme Court's waiver holding rests on an "unreasonable" reading of the trial record. *Ante*, at 399. After all, the Court observes, Mr. Pitchford didn't entirely forgo a comparative juror argument in the trial court; his motion for a new trial included a line devoted to just that topic. *Ante*, at 400; 1 App. 184. But be that as it may, the Court does not (and cannot) explain how it was unreasonable for the Mississippi Supreme Court to determine that Mr. Pitchford waived a *Batson* argument he never made dur-

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[2] Where Mississippi preservation law operates on an argument-by-argument basis, we have sometimes said ours operates on a claim-by-claim basis. See *Lebron* v. *National Railroad Passenger Corporation*, 513 U. S. 374, 379 (1995). And what Mississippi calls "waiver," we would ordinarily call "forfeiture." See *Hamer* v. *Neighborhood Housing Servs. of Chicago*, 583 U. S. 17, 20, n. 1 (2017). But our preferences on these matters do not bind the State. See *Ford*, 498 U. S., at 423. And for that reason, I use the term "waiver" here the same way the Mississippi Supreme Court did.

ing jury selection and introduced for the first time only in a single sentence in a post-trial motion.

Perhaps sensing the problem, the Court ultimately rests its § 2254(d)(2) analysis on a different ground. Citing the exchange that took place at the end of jury selection, the Court says that the state trial court "explicitly assured" defense counsel that the "*Batson* objection was preserved." *Ante*, at 399. And this assurance, the Court reasons, must mean that Mr. Pitchford adequately preserved the step three comparative juror argument he sought to make before the Mississippi Supreme Court.

But that much is far from clear. Rather than announcing an intent to raise a new step three comparative juror argument at the conclusion of jury selection, Mr. Pitchford's attorneys said only that they "want[ed] to reserve . . . [their] *Batson* objection," which sounds like a reference to the step one statistical argument they had made earlier. 1 App. 175. Supporting that inference, counsel proceeded to repeat the same statistical argument they had already made. *Id.*, at 175–176. True, resting on that point alone might not have been the best move. But considering what happened later, it hardly seems an unlikely explanation. After his appeal to the Mississippi Supreme Court failed, Mr. Pitchford sought state post-conviction relief. And in support of that effort, one of his trial attorneys expressly represented that she had " 'failed to challenge the prosecution's reasons as pretextual at trial' " and that she "did not . . . do anything to . . . reserve" the pretext argument Mr. Pitchford sought to press on appeal. App. to Brief for Respondents 40a, 77a.

Of course, Mr. Pitchford now advances a very different reading of the trial court record. Now, he says his lawyers did seek to preserve a step three comparative juror argument at the conclusion of jury selection. To be sure, Mr. Pitchford admits, his lawyers did not ask the trial court to compare any seated white juror with any struck black juror. But, he suggests, that is only because the court cut

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off his attorneys and didn't allow them to get the argument out. See Brief for Petitioner 33–35.

That account is difficult to credit as well. Not only is it inconsistent with his own attorney's representation that she failed to preserve a pretext argument. Nothing in the record indicates a trial court seeking to thwart defense counsel's ability to represent their client. In fact, the record shows that Mr. Pitchford's attorneys were more than capable of speaking up when they had something to say. For just one example, consider the page of the transcript following the initial *Batson* exchange. On that one page alone, counsel cut off another lawyer, raised an objection, and then interrupted the trial judge mid-sentence to make another point. 1 App. 171. There are plenty of other examples like it. See, *e. g.*, *id.*, at 158–160, 164–165.

Put simply, Mr. Pitchford's account of a muzzled defense team is hard to square with the record. But even if it were a plausible account, that still would not be enough. Under § 2254(d)(2), a federal habeas petitioner must show not only that his version of events is plausible. He must show that the record "compel[s]" it. *Rice* v. *Collins*, 546 U. S. 333, 341 (2006). And no matter how generously one interprets the record in this case, that is a standard Mr. Pitchford cannot meet. It is just as reasonable, if not more so, to conclude that Mr. Pitchford's attorneys meant to "reserve" only the statistical argument they had made at step one—not a step three comparative juror argument they never mentioned at any point during jury selection or trial. 1 App. 175. Reflecting as much, not only did the Mississippi Supreme Court read the record differently than Mr. Pitchford now does. The Fifth Circuit did too, holding that the Mississippi Supreme Court's waiver conclusion was not only reasonable but correct. 126 F. 4th, at 429.

In response to all this, the Court insists that "defense counsel typically" make a step three comparative juror argument before the trial court. *Ante*, at 400, n. 3. Perhaps

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that is right. But the Court points to nothing in the record showing that Mr. Pitchford's counsel made such an argument in this case. The Court reasserts, too, its "fundamental point" that, even if Mr. Pitchford's counsel failed to present a step three comparative juror argument, it was only because the trial court "prevented" them from doing so. *Ante*, at 400, n. 3. But the Court's repetition of its point serves only to highlight its failure to cite anything in the record supporting, much less compelling, its conclusion. See *Rice*, 546 U. S., at 341.

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In short, I respectfully dissent because, as I see it, the Court's opinion errs on the law and the factual record alike. But if the Court's decision is mistaken, at least its impact is limited. Precisely because so many of our AEDPA precedents go unmentioned, I do not read today's decision as calling any of them into question. Notably, too, the Court issues a narrow judgment, holding only that Mr. Pitchford did not waive a step three *Batson* argument without dictating what further proceedings may be appropriate on remand consistent with § 2254.

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